

HOUSE No. 4646

House bill No. 4644, as amended and passed to be engrossed by the House. October 22, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing child welfare protections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 172 of chapter 6 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out, in line 133, the words “2A of chapter 38”
3 and inserting in place thereof the following words:- 16 of chapter 18C.

4 SECTION 2. Section 6A of chapter 18B of the General Laws, as so appearing, is hereby
5 amended by striking out the fifth paragraph.

6 SECTION 3. Said chapter 18B is hereby further amended by inserting after section 6A
7 the following section:-

8 Section 6B. (a) The commissioner shall, subject to appropriation, establish and maintain
9 an education unit. The education unit shall: (i) implement and oversee the regional and area
10 offices’ work on education for children receiving services from the department, consistent with
11 policies created by the department’s education director; (ii) monitor student academic progress of
12 children under the care and custody of the area office not less than once per academic quarter;

(iii) provide support and assistance to department social workers regarding educational needs of children; (iv) provide detailed training to department social workers on the best practices to monitor a child's education experiences, recognizing any unavailability of resources preventing a child from participating in school courses and developing individual education plans and 504 plans; (v) ensure the timeliness and accuracy of the transfer of education records detailing a child's educational background and needs; and (vi) maintain contact with appropriate local school districts and education organizations to facilitate enrollment, information sharing and placement of children into school districts served by the area office.

(b) The commissioner shall, subject to appropriation, appoint an education director. The education director's duties shall include, but shall not be limited to: (i) developing, implementing and overseeing the department's policies on education for children under the care and custody of the department, including policy development and practice guidance; (ii) monitoring state and federal laws, programs and resources that may impact the education of children under the care and custody of the department; (iii) advising the commissioner and all education specialists on all matters relating to education, strategic education initiatives, policy and practice management matters; (iv) coordinating efforts of the education specialists to identify and address systemic barriers to accessing educational services for children under the care and custody of the department, including issues related to transportation for children in department care or custody to attend their school of origin; (v) coordinating with department area and regional offices on education related issues; and (vi) facilitating best practice training for education specialists. The education director shall perform duties pursuant to this section and such other duties as may be assigned by the commissioner.

(c) The director shall appoint, subject to appropriation and the approval of the commissioner, education specialists who shall be employees of the department and who shall devote their full time and attention to supporting the department's goal of educational stability and success for all elementary and secondary school students under the care and custody of the department.

(d) An education specialist may accompany social workers to meetings with school personnel, including, but not limited to, meetings relative to a child's individual education plan or 504 plan.

SECTION 4. Section 7 of said chapter 18B, as appearing in the 2024 Official Edition, is hereby amended by striking out subsection (e) through (o), inclusive, and inserting in place thereof the following 11 subsections:-

(e) The commissioner shall develop and implement a plan for the orientation and training of area-based and other staff. The plan shall require all employees to be issued photo identification to be used in the performance of their duties, including for display upon introduction.

(f) The commissioner shall coordinate the overall service planning of the department with planning under Title XX of the Social Security Act, 42 U.S.C. 1397 et seq.

(g) The commissioner may apply for and accept on behalf of the commonwealth federal, local or private grants, bequests, gifts or contributions.

(h) The commissioner, subject to chapter 30A, shall adopt rules and regulations necessary to carry out this chapter and chapter 119.

(i) The commissioner shall include in the budget estimates of the department funds for the development and implementation of said management information system, monitoring and evaluation system, annual needs assessment and staff training plan.

(j) The commissioner shall, subject to appropriation, enter into contracts with nonprofit organizations to provide services for families and individuals in emergency and transitional housing; provided, that the department, in entering into such contracts, shall provide \$3 for each dollar of donated funds which have been committed to such nonprofit organizations from any non-state source. For the purposes of this subsection, a non-state source may include private donations or monies from city, town or county governments but shall not include funds from other state agencies.

(k) Prior to undertaking any activity or implementing any policy which would affect expenditures for medical assistance under chapter 118E, including, but not limited to, identifying individuals eligible for such assistance under said chapter 118E, the commissioner shall assure that such activity or policy is reviewed by the director of Medicaid.

(l) Not more than 3 per cent of the department's annual budget shall be appropriated in a separate account and expended for the purposes of subsections (b), (c) and (d).

(m) The commissioner shall consult with the commissioner of mental health prior to taking any action substantially affecting the design and implementation of behavioral health services for children under guidelines established by the secretary of health and human services under section 16S of chapter 6A.

(n) Upon receipt of a completed review of multiple 51A reports required under subsection (r) of section 51B of chapter 119, the commissioner shall immediately notify: (i) the

78 district attorney for the county in which the child resides and for the county in which the event
79 giving rise to a report occurred; (ii) local law enforcement authorities in the city or town in
80 which the child resides and in the city or town in which the event giving rise to a report occurred;
81 and (iii) the office of the child advocate.

82 (o) The commissioner shall require social workers employed by the department to obtain
83 a license as a social worker pursuant to section 131 of chapter 112 within the first 9 months of
84 employment. The commissioner shall require social workers employed by the department to
85 participate in not less than 30 hours per year of paid professional development training;
86 provided, however, that such training shall be consistent with applicable collective bargaining
87 agreements. The commissioner may grant a social worker employed by the department a 1-time
88 6-month hardship waiver from the licensing requirement under this subsection to ensure access
89 for underserved populations.

90 SECTION 5. Section 20 of said chapter 18B, as so appearing, is hereby amended by
91 striking out the second sentence.

92 SECTION 6. Said chapter 18B is hereby further amended by striking out section 23, as
93 appearing in section 45 of chapter 176 of the acts of 2008.

94 SECTION 7. Said chapter 18B is hereby further amended by striking out section 23,
95 inserted by section 8 of chapter 321 of the acts of 2008, and inserting in place thereof the
96 following section:-

97 Section 23. If the department has care and custody of a child receiving inpatient
98 psychiatric services, the department shall contact the child's parents or guardians, as appropriate,
99 and a member of the child's treatment team within 3 business days of the hospitalization shall

maintain weekly contact with them until the child is discharged, and shall immediately begin discharge planning, with the priority of returning the child to their home or to a community placement. Not later than 5 business days after being notified that continued hospitalization is no longer clinically appropriate, the department shall determine the appropriate type of placement for the child and shall immediately initiate the placement referrals. The department shall document its activities in assisting with discharge placement, including identification of available resources for home-based, community or alternative residential placements, and the barriers, if any, to discharge the child to the most clinically appropriate setting. If the initial placement shall not be deemed to be the most clinically appropriate, the department shall continue to seek an appropriate placement. Not later than 30 days after being notified that continued hospitalization is no longer clinically appropriate, the department shall refer the child to the interagency review team established pursuant to section 16R of chapter 6A.

SECTION 8. Sections 24 and 25 of said chapter 18B are hereby repealed.

SECTION 9. Said chapter 18B is hereby further amended by adding the following 3 sections:-

Section 26. (a)(1) Annually, not later than October 31, the department shall issue a report that provides an overview of the department's performance during the previous fiscal year. The report shall include comparative departmental information from prior fiscal years. The commissioner or a designee shall file the report with the governor, the child advocate, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities. The commissioner shall provide the recipients of the report with an opportunity to discuss its contents

with the commissioner or a designee. The report shall be made publicly available on the department's website in accordance with section 19 of chapter 66; provided, that the report shall be deidentified and any personally identifiable information shall be removed prior to publication on the department's website.

(2) The report shall include, but shall not be limited to, narratives, information, data and analysis on:

(i) counts, including, but not limited to: (A) case counts; (B) the number of children served by the department; (C) child demographic information, including age, race, ethnicity, primary language, birth sex, gender identity, sexual orientation and disability; (D) intersectional data; (E) rates of racial disproportionality and disparity at various decision points throughout the life of a case, including, but not limited to: (1) protective intakes and responses; (2) children ages 0 through 17 years, inclusive, with an open case as compared to the proportion of the child population in the commonwealth; (3) the number of children and youth in placement by placement type; (4) permanency plans for children and youth in placement, including plans meeting the federal permanency standard; (5) permanency outcomes as compared to children in placement; (6) the median placement length of stay, in days, for children who exited care as well as for children who were in out-of-home care; (7) placement moves per 1,000 placement days for children who entered care during the specified fiscal year; (8) exits from care to reunification, adoption and guardianship as a rate of all exits from placement; and (9) youth aging out as a rate of all exits from placement; (F) the number of requests for reasonable accommodations, broken down by accommodation type; (G) the total number of disability related complaints filed with the department, broken down by complaint type and region; (H) reports filed pursuant to section 51A of chapter 119; (I) placement metrics, including, but not limited to: (1) placement moves per

145 1,000 placement days for children who entered care during the specified fiscal year; (2) initial
146 placement with kin; and (3) the median number of placements between a home removal episode
147 and an initial placement review; (J) infants brought into the department's care pursuant to section
148 39½ of chapter 119; and (K) siblings in placement;

149 (ii) processes and outcomes, including, but not limited to: (A) protective responses and
150 safety outcomes; (B) the number of fatalities, including the manner of death, of children with a
151 family history with the department; (C) permanency processes and outcomes, including, but not
152 limited to, reunification, adoption, guardianship, kinship adoption, kinship guardianship and
153 aging out; (D) well-being outcomes, including the rates and timeliness of the delivery of medical
154 and behavioral health services; and (E) educational well-being outcomes, including, but not
155 limited to, school placement information, the number of individualized education plans,
156 attendance rates, high school graduation rates and school disciplinary actions; and

157 (iii) operations, including, but not limited to: (A) staffing trends; (B) caseloads; (C) the
158 department's budget, including funding levels; (D) service costs, including, but not limited to,
159 departmental foster care, contracted foster care, complex medical foster care, congregate care,
160 adoption and guardianship subsidies, foster care support services, respite and support and
161 stabilization; (E) medical services and advancements in providing medical services to children
162 and young adults in the department's care; (F) the number of children and young adults in the
163 department's care in emergency departments, inpatient units, psychiatric hospitals or
164 community-based acute treatment programs who are awaiting alternate placements and the
165 average duration of days waiting; (G) the cost of resources and practices in the child welfare
166 system due to over-reporting pursuant to section 51A of chapter 119; and (H) any new or
167 ongoing initiatives to improve practices, procedures and policy of the department.

(b) Not later than 45 days after the end of each fiscal quarter, the department shall issue a quarterly profile on its website in accordance with section 19 of chapter 66 that shall include, but not be limited to, departmental, regional office and area office data on: (i) the number of children served by the department; (ii) the number of reports filed pursuant to section 51A of chapter 119, including, but not limited to, the number of reports received, screened-in and screened-out in total and by reporter role; (iii) rates and recurrence of maltreatment of children; (iv) department case counts, including the number of clinical and adoption cases; (v) child demographic information, including age, race, ethnicity, primary language, birth sex, gender identity and sexual orientation and disability; (vi) the number of children and youth in placement by type of placement; and (vii) the number of children and youth not in placement.

(c) Annually, not later than October 31, the department shall file a report on services provided to young adults over the age of 18 with the child advocate, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities. The report shall summarize the process by which a young adult may continue to receive services from the department upon reaching the age of 18. The report shall include, but shall not be limited to: (i) young adult demographic information detailing age, race, ethnicity, primary language, gender identity, sexual orientation, disability and rates of racial disproportionality and disparity; (ii) the number of young adults who have elected to sustain or reestablish a connection with the department in the previous fiscal year; (iii) the number of young adults who have elected not to remain with the department and have transitioned out of the child welfare system in the previous fiscal year, including young adults who had previously elected to sustain a connection with the department, if such numbers are available; and (iv) the number of transition-age young adults aging out with:

191 (A) stable and permanent housing; (B) full- or part-time employment or military enlistment; (C)
192 health insurance; or (D) if sought, post-secondary education such as college, job training or a
193 certificate program within 6 months.

194 (d)(1) Annually, not later than October 31, the department shall file a report on its fair
195 hearing processes and cases with the child advocate, the clerks of the house of representatives
196 and the senate, the house and senate committees on ways and means and the joint committee on
197 children, families and persons with disabilities. The report shall be made available to the public
198 electronically in accordance with section 19 of chapter 66. The report shall include, but shall not
199 be limited to, information in a form that shall not include personally identifiable information on
200 the fair hearing requests open at any time during the previous fiscal year. For each fair hearing
201 request, the report shall provide: (i) the subject matter of the appeal; (ii) the outcomes of cases
202 resolved prior to a fair hearing decision; (iii) the number of days between the hearing request and
203 the first day of the hearing; (iv) the number of days between the close of the evidence and the
204 hearing officer's decision; (v) the number of days of continuance granted at the appellant's
205 request; (vi) the number of days of continuance granted at the request of the department or the
206 hearing officer, specifying which party made the request; and (vii) whether the department's
207 decision that was the subject of the appeal was affirmed or reversed.

208 (2) The department shall maintain and make available to the public, during regular
209 business hours, a record of its fair hearings in a form that shall not include personally identifiable
210 information but shall include, for each hearing request: (i) the date of the request; (ii) the date of
211 the hearing decision; (iii) the decision rendered by the hearing officer; and (iv) the final decision
212 rendered upon the commissioner's review. For fair hearing requests that are pending for more
213 than 180 days at any time during the fiscal year, except for those requests which have been

214 stayed at the request of the district attorney, the report shall provide the number of such cases,
215 the number of those cases that have been heard but not decided and the number of cases that
216 have been decided by the hearing officer but for which a final agency decision has not yet been
217 issued.

218 (e) Annually, not later than October 31, the department shall file with the child advocate,
219 the clerks of the house of representatives and the senate and the joint committee on children,
220 families and persons with disabilities a report on the foster care review system and any
221 recommendations for its improvement, including, but not limited to: (i) the population served by
222 the department, including, but not limited to, case counts, child, youth and young adult and
223 parent or caregiver counts and children, youth and young adults in placement; (ii) a foster care
224 review overview, including, but not limited to, foster care review policy, the number of children,
225 youth and young adults in placement with a convened foster care review and foster care review
226 considerations; (iii) scheduling, including, but not limited to, scheduled and convened foster care
227 review meetings, children, youth and young adults reviewed, duration of meetings and timeliness
228 of foster care review report completion; (iv) attendance, including, but not limited to, foster care
229 review meeting panel composition and mandated participants invited and attended; (v) the
230 review process, including, but not limited to, the department action plan, placement activities,
231 social worker contact, parent-child visitation, health, education and well-being needs,
232 information on youth and young adults and systemic barriers for children, youth and young
233 adults and parents or caregivers; (vi) foster care review determinations; (vii) minority opinions,
234 including, but not limited to, minority opinions by a panel member; and (viii) foster care review
235 follow-up activities.

(f) If the department is unable to submit the report under subsection (a), issue the profile under subsection (b) or submit any other reports required pursuant to subsections (c), (d) and (e) by the respective deadlines, the commissioner or the commissioner's legal counsel shall notify the governor, the child advocate, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities in writing and provide an explanation for the delay.

(g) The department may satisfy the reporting requirements pursuant to subsection (b) through (e), inclusive, by providing the requested information in the annual report pursuant to subsection (a).

Section 27. (a) The commissioner or a designee shall notify the joint committee on children, families and persons with disabilities within 1 week of a child or young adult in the department's custody sleeping in the department's area office overnight. Notice shall include the region, the average length of stay, the age of the child or young adult, any previous placement types and any challenges in finding placement.

(b)(1) The commissioner or a designee shall notify the joint committee on children, families and persons with disabilities when draft regulations are made available by the department for public comment. Notice shall be provided not later than the day that draft regulations are made public.

(2) Not later than 30 days after the promulgation of regulations or the effective date of adopted or revised departmental policies related to services provided to children and families, the department shall provide copies of the regulations or departmental policies to the joint committee on children, families and persons with disabilities.

(c) Not later than 5 days after the end of each fiscal quarter, the commissioner or a designee shall notify the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities when data from a profile issued pursuant to subsection (b) of section 26 significantly departs from trends reported in a previous profile.

Section 28. (a) The department shall establish a 5-year plan, on a fiscal year basis, that shall include numerical targets for the department's performance in each fiscal year and in each of its regions in the areas of safety, permanence and well-being. The plan shall include a description of how the department measures its progress toward meeting the numerical targets and may include different performance targets for different regions. In developing the plan, the department may consult with governmental and nongovernmental partners, as necessary. The department shall update the plan annually.

(b) Annually, the department shall measure its performance in meeting the numerical and performance targets established in the 5-year plan for the commonwealth as a whole and for each of its regions. The department shall publish and maintain on its website the current plan, the numerical and performance targets for previous years and the department's performance in meeting those targets.

(c) If, in a fiscal year, the department is unable to develop or update the 5-year plan or measure its performance, the department shall notify, as soon as practicable, the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on children, families and persons with disabilities and the child advocate.

SECTION 10. Section 1 of chapter 18C, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of “Critical incident” and inserting in place thereof the following definition:-

“Critical incident”, (i) a fatality, near fatality or serious bodily or emotional injury of a child or the indecent assault and battery of a child pursuant to sections 13B to 13B¾ of chapter 265, inclusive, or the rape and abuse of a child pursuant to sections 23 to 23B, inclusive, of said chapter 265, who is in the custody of, or receiving services from, an executive agency, state agency or a constituent agency; or (ii) circumstances that result in a reasonable belief that an executive agency, stage agency or a constituent agency failed in its duty to protect or adequately serve a child and, as a result, the child suffered or was at imminent risk of suffering serious bodily or emotional injury or death.

SECTION 11. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by inserting after the definition of “Department” the following definition:-

“Emotional injury”, an injury or harm that occurs when a child of any age witnesses the fatality or life-threatening incident of an individual related to an unexpected medical event, overdose, violent act or suicide.

SECTION 12. Said section 1 of said chapter 18C, as so appearing, is hereby further amended by striking out the definition of “Executive agency” and inserting in place thereof the following 2 definitions:-

“Executive agency”, a state agency within the office of the governor that provides services to children, including services through contracted providers and through entities licensed by a state agency. Executive agencies shall include the executive office of education, the

301 executive office of public safety and security, the executive office of health and human services,
302 and their constituent agencies, the Massachusetts interagency council on housing and
303 homelessness and the executive office of housing and livable communities.

304 “Near fatality”, an injury that is: (i) accidental or the result of a medical condition,
305 attempted suicide or abuse and neglect; and (ii) certified by a physician to be life threatening.

306 SECTION 13. Said section 1 of said chapter 18C, as so appearing, is hereby further
307 amended by striking out, in line 21, the words “or emotional”.

308 SECTION 14. Said section 1 of said chapter 18C, as so appearing, is hereby further
309 amended by striking out, in line 24, the words “or emotional distress”.

310 SECTION 15. Said section 1 of said chapter 18C, as so appearing, is hereby further
311 amended by adding the following definition:-

312 “State agency”, a department or agency in the commonwealth that provides services to
313 children through direct services, guidance, oversight, contracted services or licensing functions;
314 provided, that “state agency” shall include, but shall not be limited to: the department of children
315 and families, the department of youth services, the department of public health, the department
316 of mental health, the department of developmental services, the department of early education
317 and care and the department of elementary and secondary education.

318 SECTION 16. Section 2 of said chapter 18C, as so appearing, is hereby amended by
319 striking out, in lines 2 and 3, the words “independent of any supervision or control by any
320 executive agency.” and inserting in place thereof the following words:- an independent state
321 agency that shall not be subject to the supervision or control of any other executive office, state

agency, commission, board, bureau or political subdivision of the commonwealth. The office shall oversee the services that executive agencies or state agencies provide to children in the commonwealth.

SECTION 17. The first paragraph of said section 2 of said chapter 18C, as so appearing, is hereby amended by striking out clause (c) and inserting in place thereof the following clause:-

(c) examine, on a system-wide and individual case basis, the care and services that executive agencies or state agencies provide to children through direct services, guidance, oversight, contracted services and licensing functions.

SECTION 18. Said first paragraph of said section 2 of said chapter 18C, as so appearing, is hereby further amended by striking out clauses (d) and (e) and inserting in place thereof the following 5 clauses:-

(d) advise the public and those at the highest levels of state government about how the commonwealth may improve its services to and for children and their families;

(e) examine disproportionality related to race, ethnicity, disability status, transgender status, sexual orientation or gender identity; provided, that the office shall use data provided by executive agencies or state agencies related to services provided by the executive agencies or state agencies;

(f) subject to appropriation, partner with executive agencies, state agencies or other entities if it is in the best interest of the children of the commonwealth to: (i) support programs, including establishing pilot programs; and (ii) expand or improve current programs; provided,

342 that the child advocate shall not enter into any partnership that may jeopardize the office's
343 oversight functions;

344 (g) provide training and technical assistance to executive agencies and state agencies to
345 improve services to children if it is in the best interest of the children of the commonwealth;
346 provided, that the child advocate shall not provide training or technical assistance that may
347 jeopardize the office's oversight functions; and

348 (h) maintain a publicly available website that shall make materials available for mandated
349 reporters, including, but not limited to, trainings, guidance, statutory references, resources for
350 individuals or families and best practices.

351 SECTION 19. Subsection (a) of section 5 of said chapter 18C, as so appearing, is hereby
352 amended by inserting after the first sentence the following sentence:- Notification shall include
353 demographic information of the child, if known.

354 SECTION 20. Said section 5 of said chapter 18C, as so appearing, is hereby further
355 amended by striking out, in lines 6 and 18, the word "he", each time it appears, and inserting in
356 place thereof, in each instance, the following word:- they.

357 SECTION 21. Said section 5 of said chapter 18C, as so appearing, is hereby further
358 amended by striking out, in lines 5, 8, 16, 19 and 21, the word "his", each time it appears, and
359 inserting in place thereof, in each instance, the following word:- their.

360 SECTION 22. Said section 5 of said chapter 18C, as so appearing, is hereby further
361 amended by striking out, in line 25, the word "his" and inserting in place thereof the following
362 words:- the office's.

363 SECTION 23. Said section 5 of said chapter 18C, as so appearing, is hereby further
364 amended by striking out, in line 28, the word “him” and inserting in place thereof the following
365 words:- the child advocate.

366 SECTION 24. Said section 5 of said chapter 18C, as so appearing, is hereby further
367 amended by adding the following 2 subsections:-

368 (i) Prior to publicly releasing a report related to an investigation where the child advocate
369 makes a determination that there is a reasonable belief that an executive agency or a state agency
370 failed in its duty to protect or adequately serve a child, the child advocate shall submit a final
371 report to the governor, the attorney general, the auditor, the speaker of the house of
372 representatives and the senate president. Any executive agency, state agency or program that is
373 the subject of the investigation shall not receive the report prior to the governor, the attorney
374 general, the auditor, the speaker of the house of representatives and the senate president.

375 (j) The department shall inform the child advocate as soon as practicable when a foster
376 care review safety alert is issued. The office shall review the circumstances of the foster care
377 review safety alert and provide feedback to the department on individual cases and trends in
378 services.

379 SECTION 25. Section 6 of said chapter 18C, as so appearing, is hereby amended by
380 striking out, in line 1, the word “his” and inserting in place thereof the following word:- their.

381 SECTION 26. Section 9 of said chapter 18C, as so appearing, is hereby amended by
382 striking out, in line 2, the word “his” and inserting in place thereof the following word:- their.

SECTION 27. Section 10 of said chapter 18C, as so appearing, is hereby amended by inserting after the figure “5”, in line 7, the following words:- , data related to the mandated reporter training and website pursuant to subsection (h) of section 2, any examination of systemwide challenges pursuant to section 11.

SECTION 28. Said chapter 18C is hereby further amended by striking out section 11 and inserting in place thereof the following section:-

Section 11. The child advocate may examine systemwide challenges to providing adequate services to children. The child advocate may prioritize the examination of challenges that: (i) include multiple state agencies or executive agencies; and (ii) affect the most vulnerable children. Systemwide examinations shall include recommendations for improvements to the services provided to children by executive agencies or state agencies. The child advocate may utilize any source of information available to the office to make recommendations and may seek advice from individuals with expertise in relevant fields of work or study. The child advocate shall file a report on any examination with the governor, the clerks of the house of representatives and the senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities.

SECTION 29. Section 12 of said chapter 18C, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 12, the word “his”.

SECTION 30. Said section 12 of said chapter 18C, as so appearing, is hereby further amended by inserting after the figure “66”, in line 21, the following words:- , 66A.

SECTION 31. Said section 12 of said chapter 18C, as so appearing, is hereby further amended by striking out, in line 23, the word “his” and inserting in place thereof the following word:- the.

SECTION 32. Said section 12 of said chapter 18C, as so appearing, is hereby further amended by striking out, in lines 34 to 38, inclusive, the words “sharing with the governor, the attorney general, a district attorney, a secretary, an agency commissioner or other agency personnel, or the chairs of the joint committee on children, families and persons with disabilities, the report of, or the results of, a critical incident investigation involving that agency” and inserting in place thereof the following words:- from: (i) sharing the report of, or the results of, a critical incident investigation involving an executive agency or state agency with the governor, the attorney general, a district attorney, a secretary or commissioner or other agency personnel involved in the critical incident investigation, the speaker of the house of representatives, the senate president or the chairs of the joint committee on children, families and persons with disabilities; (ii) sharing information with a state agency when the child advocate deems, in their sole discretion, that such information sharing is necessary for the child advocate to perform the child advocate’s duties; or (iii) issuing a public report when such report, in the sole discretion of the child advocate, is necessary for the child advocate to perform the child advocate’s duties; provided, however, that any public report shall be deidentified and any personally identifiable information shall be removed prior to publication.

SECTION 33. Section 13 of said chapter 18C, as so appearing, is hereby amended by striking out, in line 5, the word “his” and inserting in place thereof the following word:- their.

SECTION 34. Said chapter 18C is hereby further amended by adding the following 3 sections:-

Section 15. (a) Notwithstanding section 12, any information requested for research purposes by the office from the trial court, including the office of probation, related to juvenile court activity record information data shall comply with this section.

(b)(1) The office may request data for research purposes from the trial court, including the office of probation. Each request shall include a research proposal containing a detailed description of the research project, including: (i) the type of data sought; (ii) the reason the requested data is relevant to the project; (iii) the proposed project methodology; (iv) how the confidentiality of the data will be maintained; and (v) the identity of the research project members responsible for preserving the confidentiality of the research subjects. The research proposal shall demonstrate that the research project is being conducted for a valid educational, scientific or other public purpose.

(2) The trial court shall review the request for data related to juvenile court activity record information data for research purposes and determine if the proposal demonstrates that the research project is being conducted for a valid educational, scientific or other public purpose and all information requested pursuant to this subsection are in compliance with trial court rules, policies or other relevant laws.

(3) Upon approval of the data request pursuant to this subsection, each individual who will have contact with the data shall submit a non-disclosure agreement to the trial court, agreeing to maintain the confidentiality of the data.

(c) The trial court, including the office of probation, shall have the right to inspect the research project and to conduct an audit of the office's use of the requested data. Prior to publication, the trial court, including the office of probation, shall have the right to validate the analysis and ensure data integrity, deidentification and confidentiality of the information.

(d) The office shall only use the data for its requested purpose. The office may disseminate reports and statistical analyses based on the data; provided, however, that the office shall not disseminate the raw data for any purpose except as stated in its research proposal.

(e) Upon completion or termination of the research project, the office shall: (i) destroy the data; and (ii) attest to the trial court, including the office of probation, in writing, that such destruction has been effected.

Section 16. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

"Child", a person under the age of 18.

"Fatality", a death of a child.

"Local team", a local child fatality review team established in subsection (c).

"Near fatality", an act that, as certified by a physician, places a child in serious or critical condition.

"State team", the state child fatality review team established in subsection (b).

"Team", the state or a local team.

(b)(1) There shall be a state child fatality review team within the office. Notwithstanding section 172 of chapter 6, members of the state team shall be subject to criminal offender record checks to be conducted by the colonel of state police on behalf of the child advocate. All members shall serve without compensation for their duties associated with membership on the state team. The state team shall include, but shall not be limited to: (i) the child advocate or a designee, who shall serve as co-chair; (ii) the commissioner of public health or a designee, who shall serve as co-chair; (iii) the chief medical examiner or a designee; (iv) the attorney general or a designee; (v) the commissioner of children and families or a designee; (vi) the commissioner of elementary and secondary education or a designee; (vii) a representative selected by the Massachusetts District Attorneys Association; (viii) the colonel of state police or a designee; (ix) the commissioner of mental health or a designee; (x) the commissioner of developmental services or a designee; (xi) the director of the Massachusetts Center for Unexpected Infant and Child Death at Boston Medical Center or a designee; (xii) the commissioner of youth services or a designee; (xiii) the commissioner of early education and care or a designee; (xiv) a representative selected by the Massachusetts chapter of the American Academy of Pediatrics who has experience in diagnosing or treating child abuse and neglect; (xv) a representative selected by the Massachusetts Health and Hospital Association, Inc.; (xvi) the president of the Massachusetts Chiefs of Police Association Incorporated or a designee; (xvii) the department of children and families chapter president or designee of the certified collective bargaining representative of bargaining unit 8; and (xviii) any other person, selected by the co-chairs or by majority vote of the members of the state team, with expertise or information relevant to an individual case.

(2) The purpose of the state team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (i) developing an understanding of the causes and incidence of child fatalities and near fatalities; and (ii) advising the governor, the general court and the public by recommending changes in law, policy and practice to prevent child fatalities and near fatalities. The state team may consult with the chief justice of the juvenile court department of the trial court on issues with a direct bearing upon the business of the courts of the commonwealth.

(3) To achieve its purpose, the state team shall: (i) develop model investigative and data collection protocols for local teams; (ii) provide information to local teams and law enforcement agencies for the purpose of protecting children; (iii) provide training and written materials to local teams to assist them in carrying out their duties; (iv) review reports from local teams; (v) study the incidence and causes of child fatalities and near fatalities in the commonwealth; (vi) analyze community, public and private agency involvement with the children and their families prior to and subsequent to fatalities or near fatalities; (vii) develop a protocol for the collection of data regarding fatalities and near fatalities and provide training to local teams on the protocol; (viii) develop and implement rules and procedures necessary for its own operation; and (ix) provide the governor, the general court and the public with annual written reports, subject to confidentiality restrictions, that shall include, but shall not be limited to, the state team's findings and recommendations.

(c)(1) There shall be a local child fatality review team in each district established under section 13 of chapter 12. Notwithstanding section 172 of chapter 6, members of a local team shall be subject to criminal offender record checks to be conducted by the district attorney in each such district. All members shall serve without compensation for their duties associated with

membership on a local team. Each local team shall include, but shall not be limited to: (i) the district attorney of the county, who shall serve as chair; (ii) the chief medical examiner or a designee; (iii) the commissioner of children and families or a designee; (iv) a pediatrician with experience in diagnosing or treating child abuse and neglect, appointed by the state team; (v) a local police officer from a municipality where a child fatality or near fatality occurred, appointed by the chief of police of the municipality; (vi) a state law enforcement officer, appointed by the colonel of state police; (vii) the director of the Massachusetts Center for Unexpected Infant and Child Death located at Boston Medical Center or a designee; (viii) at least 1 representative from the department of public health; (ix) at least 1 representative from the office; (x) the department of children and families chapter president or designee of the certified collective bargaining representative of bargaining unit 8; and (xi) any other person, selected by the co-chairs or by majority vote of the members of the state team, with expertise or information relevant to an individual case; provided, that such person may include, but shall not be limited to, a local or state law enforcement officer, a hospital representative, a medical specialist or subspecialist or a designee of the commissioners of developmental services, mental health, youth services, education and early education and care.

(2) The purpose of each local team shall be to decrease the incidence of preventable child fatalities and near fatalities by: (i) coordinating the collection of information on fatalities and near fatalities; (ii) promoting cooperation and coordination between agencies responding to fatalities and near fatalities and in providing services to family members; (iii) developing an understanding of the causes and incidence of child fatalities and near fatalities in the county; and (iv) advising the state team on changes in law, policy or practice that may affect child fatalities and near fatalities.

(3) To achieve its purpose, each local team shall: (i) review, establish and implement model protocols from the state team; (ii) review, subject to the approval of the local district attorney, all individual fatalities and near fatalities in accordance with the established protocols; (iii) meet periodically, not less than 2 times per calendar year, to review the status of fatality and near fatality cases and recommend methods of improving coordination of services between member agencies; (iv) collect, maintain and provide confidential data as required by the state team; and (v) provide law enforcement or other agencies with information to protect children.

(4) At the request of the local district attorney, the local team shall immediately be provided with: (i) information and records relevant to the cause of the fatality or near fatality maintained by providers of medical or other care, treatment or services, including dental and mental health care; (ii) information and records relevant to the cause of the fatality or near fatality maintained by any state, county or local government agency, including, but not limited to, birth certificates, medical examiner investigative data, parole and probation information records and law enforcement data post-disposition; provided, however, that certain law enforcement records may be exempted by the local district attorney; (iii) information and records of any provider of social services, including the department, relevant to the child or the child's family, that the local team deems relevant to the review; and (iv) demographic information relevant to the child and the child's immediate family, including, but not limited to, address, age, race, gender and economic status. The district attorney may enforce this paragraph by seeking an order of the superior court.

(d) Any privilege or restriction on disclosure established pursuant to chapter 66A, section 70 of chapter 111, section 11 of chapter 111B, section 18 of chapter 111E, chapter 112, chapter 123, section 20B, 20J or 20K of chapter 233 or any other law relating to confidential

communications shall not prohibit the disclosure of this information to the chair of the state team or a local team. Any information considered to be confidential pursuant to the aforementioned statutes may be submitted for a team's review upon the determination of that team's chair that the review of this information is necessary. The chair shall ensure that no information submitted for a team's review is disseminated to parties outside the team. No member of a team shall violate the confidentiality provisions set forth in the aforementioned statutes. Except as necessary to carry out a team's purpose and duties, members of a team and persons attending a team meeting shall not disclose any information relating to the team's business. Team meetings shall be closed to the public. Information and records acquired by the state team or by a local team pursuant to this chapter shall be confidential, exempt from disclosure under chapter 66 and may only be disclosed as necessary to carry out a team's duties and purposes. Statistical compilations of data that do not contain any information that would permit the identification of any person may be disclosed to the public.

(e) Members of a team, persons attending a team meeting and persons who present information to a team shall not be questioned in any civil or criminal proceeding regarding information presented in or opinions formed as a result of a team meeting.

(f) Information, documents and records of the state team or of a local team shall not be subject to subpoena, discovery or introduction into evidence in any civil or criminal proceeding; provided, however, that information, documents and records otherwise available from any other source shall not be immune from subpoena, discovery or introduction into evidence through these sources solely because they were presented during proceedings of a team or are maintained by a team.

(g) Nothing in this section shall limit the powers and duties of the child advocate or district attorneys.

Section 17. The office shall, every 3 years, oversee the review of child welfare data reporting and make recommendations for improvements to the report and profile pursuant to subsections (a) and (b) of section 26 of chapter 18B and other reports required pursuant to subsections (c), (d) and (e) of said section 26 of said chapter 18B, or the data measures, progress measures and outcome measures pursuant to section 128 of chapter 47 of the acts of 2017. Following the release of the department's annual report, the office shall seek input from the public, advocates and diverse stakeholders from across the commonwealth. The office shall consult with other individuals with relevant expertise, including academics, researchers and service providers. Following such review, the office shall post a report on the office's website on its recommendations, together with drafts of any legislation necessary to carry out its recommendations and an aggregate response to the comments.

SECTION 35. Section 2A of chapter 38 of the General Laws is hereby repealed.

SECTION 36. Chapter 71 of the General Laws is hereby amended by adding the following section:-

Section 102. The department and the department of children and families shall jointly establish clear timelines for the enrollment of a child in the department of children and families' custody into a new school district, including, but not limited to, timelines for the timely transfer of relevant records and documentation.

SECTION 37. Subsection (f) of section 23 of chapter 119 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the sixth sentence.

599 SECTION 38. Subsection (h) of said section 23 of said chapter 119, as so appearing, is
600 hereby amended by striking out the second paragraph.

601 SECTION 39. Said chapter 119 is hereby further amended by inserting after section 29D
602 the following section:-

603 Section 29E. (a) Not later than 3 business days after any non-emergency change in a
604 child's or a young adult's placement or any non-emergency hospitalization the department's
605 counsel shall provide notice of the change in placement or hospitalization to the child's or the
606 young adult's counsel.

607 (b) Not later than 1 business day after any emergency change in a child's or a young
608 adult's placement or any emergency hospitalization, the department's counsel shall provide
609 notice of the change in placement or hospitalization to the child's or the young adult's counsel.

610 (c) Not later than 3 business days after receipt of a report under section 51A, the
611 department's counsel shall provide notice to a child's counsel if it receives a report under section
612 51A and the child is the subject of the report.

613 (d) Not later than 1 business day after the department receives a report under section 51A
614 that raises substantial questions regarding the suitability of the child's or young adult's current
615 placement or any of the child's or young adult's service providers, the department's counsel shall
616 provide notice to a child's counsel or a young adult's counsel.

617 (e) The department's counsel shall provide notice to a child's or young adult's counsel
618 within 3 business days whenever the department becomes aware of: (i) the child or young adult
619 being arrested; (ii) the child's or young adult's involvement in any proceeding under this chapter

or any criminal investigation or proceeding; (iii) the child or young adult being suspended or expelled from school; or (iv) the child or young adult being the subject of any proceeding regarding their suspension or expulsion from school.

(f) The department's attorney portal shall provide automated notifications not later than 1 business day for all events pursuant to subsections (a) and (b).

SECTION 40. Section 29E of said chapter 119, inserted by section 39, is hereby amended by striking out subsection (f) and inserting in place thereof the following subsection:-

(f) The department's attorney portal shall provide automated notifications not later than 1 business day for all events pursuant to subsections (a) to (d), inclusive.

SECTION 41. Section 39½ of said chapter 119, as appearing in the 2024 Official Edition, is hereby amended by striking out the eighth paragraph.

SECTION 42. Section 51D of said chapter 119, as so appearing, is hereby amended by striking out the eighth paragraph.

SECTION 43. Section 51E of said chapter 119, as so appearing, is hereby amended by striking out, in line 2, the figure "51D" and inserting in place thereof the following figure:- 51C.

SECTION 44. Chapter 209A of the General Laws is hereby amended by inserting after section 9 the following section:-

Section 9A. Any order shall remain in effect after the minor reaches the age of majority unless otherwise ordered by the court. Upon the minor reaching the age of majority, the former minor may appear at court on the date and time the order is to expire, and the court

shall determine whether to extend the order for any additional time reasonably necessary to protect them or to enter a permanent order.

SECTION 45. Section 5E of chapter 210 of the General Laws is hereby repealed.

SECTION 46. Chapter 258E of the General Laws is hereby amended by inserting after section 11 the following section:-

Section 11A. Any on behalf of order shall remain in effect after the minor reaches the age of majority unless otherwise ordered by the court. Upon the minor reaching the age of majority, the former minor may appear at court on the date and time the order is to expire, and the court shall determine whether to extend the order for any additional time reasonably necessary to protect them or to enter a permanent order.

SECTION 47. Item 4800-0015 of section 2 of chapter 9 of the acts of 2025 is hereby amended by striking out the words “; provided further, that not later than December 2, 2025, and February 27, 2026, the department of children and families shall submit reports to the joint committee on children, families and persons with disabilities and the house and senate committees on ways and means, which shall include, but not be limited to: (i) the fair hearing requests filed in fiscal year 2026, using non-identifying information, which shall state, for each hearing request: (a) the subject matter of the appeal; (b) the number of days between the hearing request and the first day of the hearing; (c) the number of days between the first day of the hearing and the hearing officer’s decision; (d) the number of days between the hearing officer’s decision and the agency’s final decision; (e) the number of days of continuance granted at the appellant’s request; (f) the number of days of continuance granted at the request of the department of children and families or the hearing officer’s request, specifying which party made

662 the request; and (g) whether the department's decision that was the subject of the appeal was
663 affirmed or reversed; and (ii) the fair hearing requests filed before fiscal year 2026, which have
664 been pending for more than 180 days, stating the number of those cases, how many of those
665 cases have been heard but not decided and how many have been decided by the hearing officer
666 but not yet issued as a final decision of the agency; provided further, that the department of
667 children and families shall maintain and make available to the public, during regular business
668 hours, a record of its fair hearings, with personal identifying information removed, including for
669 each hearing request: (1) the date of the request; (2) the date of the hearing decision; (3) the
670 decision rendered by the hearing officer; and (4) the final decision rendered by the commissioner
671 of children and families after review; provided further, that the department shall make redacted
672 copies of fair hearing decisions available within 30 days of a written request; provided further,
673 that the department of children and families shall not make available any information in violation
674 of federal privacy regulations; provided further, that not later than February 27, 2026, the
675 department of children and families shall submit a report to the joint committee on children,
676 families and persons with disabilities and the house and senate committees on ways and means
677 that shall include, but not be limited to, the: (A) number of medical and psychiatric personnel
678 and their level of training currently employed by or under contract with the department; (B)
679 number of foster care reviews conducted by the department and the average length of time in
680 which each review was completed; (C) number of social workers and supervisors who have
681 earned a bachelor's or master's degree in social work; (D) total number of social workers and the
682 total number of social workers holding licensure, by level; (E) number of the department's
683 contracts reviewed by the state auditor and the number of corrective action plans issued; and (F)
684 number of corrective action plans entered into by the department; provided further, that the

685 department of children and families shall submit quarterly reports to the joint committee on
686 children, families and persons with disabilities and the house and senate committees on ways and
687 means on the caseload of the department; provided further, that the report shall include, but not
688 be limited to: (I) the caseloads of residential placements, congregate care, foster care, therapeutic
689 foster care, adoption, guardianship, 51A reports, substantiated 51A reports, the number of
690 children who die in the care and custody of the department, the number of children currently
691 eligible for supportive child care, the number of children presently receiving supportive child
692 care and the number of medical and psychiatric consultation requests made by the department's
693 social workers; (II) the number of approved foster care placements; (III) the number of children
694 in psychiatric hospitals and community-based acute treatment programs who remain hospitalized
695 beyond their medically-necessary stay while awaiting placement and the number of days each
696 case remains in placement beyond that which is medically necessary; (IV) the number of
697 children in the department of children and families' care and custody who are receiving medical
698 or psychiatric care through other publicly-funded sources; (V) the number of children served by
699 supervised visitation centers and the number of those children who are reunified with their
700 families; (VI) the total number of children served, their ages, the number of children served in
701 each service plan, the number of children in out-of-home placements and the number of
702 placements each child has had before receiving an out-of-home placement; (VII) for each area
703 office, the number of kinship guardianship subsidies provided in the quarters covered by the
704 report and the number of kinship guardianship subsidies provided in that quarter for which
705 federal reimbursement was received; (VIII) for each area office, the total spending amount on
706 services other than case management services provided to families to keep a child with the
707 child's parents or reunifying the child with the child's parents, detailing spending by the type of

708 service provided including, but not limited to, the number of children and a breakdown of
709 spending for respite care, intensive in-home services, client financial assistance and flexible
710 funding, community-based after-school social and recreation program services, family
711 navigation services and parent aide services and the unduplicated number of families that receive
712 the services; (IX) for each area office, the total number of families residing in shelters paid for by
713 the department, a list of where the families are sheltered, the total cost and average cost per
714 family at those shelters and a description of how the department determines who qualifies or
715 does not qualify for a shelter; (X) for each area office, the number of requests for voluntary
716 services, delineated by type of service requested, whether the request was approved or denied,
717 the number of families that were denied voluntary services and received a 51A report, the
718 reasons for denying such services and what, if any, referrals were made for services by other
719 agencies or entities; (XI) the number of families receiving multiple 51A reports within a 10-
720 month period, the number of cases reopened within 6 months of being closed and the number of
721 children who return home and then reenter an out-of-home placement within 6 months; (XII) the
722 number of children and families served by the family resource centers, delineated by area; and
723 (XIII) the number of children in the care and custody of the department whose whereabouts are
724 unknown; provided further, that not later than January 30, 2026, the department of children and
725 families shall submit a report to the joint committee on children, families and persons with
726 disabilities and the house and senate committees on ways and means that details any changes to
727 the rules, regulations or guidelines established by the department in the previous fiscal year to
728 carry out its duties under chapter 119 of the General Laws including, but not limited to: (aa)
729 criteria used to determine whether a child has been abused or neglected; (bb) guidelines for
730 removal of a child from the home; and (cc) standards to determine what reasonable efforts are

being made to keep a child in the home; provided further, that on a monthly basis, the department of children and families shall provide the caseload forecasting office with data on children receiving services, young adults receiving services as defined in section 21 of said chapter 119 who continue to receive services as authorized in subsection (f) of section 23 of said chapter 119 and other pertinent data related to items 4800-0038 and 4800-0041 that is requested by the office; provided further, that the report shall also contain the number of children and families served by the family resource centers, by area, and an evaluation of the services provided and their effectiveness”.

SECTION 47A. (a) There shall be established a commission to study, report and make recommendations on the creation and implementation of a digital education portfolio system to support the educational stability and well-being of foster children and youth in the commonwealth. The commission shall: (i) evaluate the current processes by which the department of children and families and the department of elementary and secondary education collect, manage and share the educational records of foster children and youth; (ii) develop recommendations for the design and implementation of a secure and accessible digital education portfolio system to ensure the educational stability of foster children and youth; (iii) identify and assess data privacy, interoperability and record transfer standards necessary to protect student information and support timely school transitions; (iv) examine best practices from other states and jurisdictions that maintain centralized education record systems for children and youth in the care and custody of the state’s or jurisdiction’s department of children and families or equivalent agency; and (v) determine appropriate access protocols for educators, foster parents, caseworkers, medical providers and other authorized individuals.

(b) The commission shall consist of: 6 persons appointed by the governor, 1 of whom shall be a current or former foster youth, 1 of whom shall be a foster parent, 1 of whom shall have expertise in foster care or child welfare policy, 1 of whom shall represent an education advocacy organization, 1 of whom shall have expertise in education data systems or student records management and 1 of whom shall represent a child welfare or youth-serving nonprofit organization; the chairs of the joint committee on children, families and persons with disabilities, who shall be co-chairs; the commissioner of children and families or a designee; the commissioner of elementary and secondary education or a designee; the child advocate or a designee; the secretary of education or a designee; 1 person appointed by the Massachusetts Association of School Superintendents, Inc.; 1 person appointed by the Massachusetts Teachers Association; 1 person appointed by the Massachusetts Court Appointed Special Advocates, Inc.; and 1 person appointed by the Service Employees International Union Local 509.

(c) Not later than November 30, 2026, the commission shall submit its report and recommendations to the clerks of the house of representatives and the senate and the house and senate committees on ways and means. Recommendations shall include, but shall not be limited to, strategies, programs and legislation necessary to implement the digital education portfolio system and strengthen coordination between the department of children and families, educational agencies and any other relevant child welfare agencies.

SECTION 48. Section 40 shall take effect on September 1, 2026.

SECTION 49. Section 47 shall take effect on July 1, 2025.